

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MELINDA SHERMAN CARPENTER,

Petitioner

VS.

MATTHEW CALEB CARPENTER,

Respondent

) Case Number: FDI-21-794899

) Hearing Date: April 28, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: DONNA PETRE

REQUEST FOR ORDER: MOTION TO COMPEL RESPONDENT TO EXECUTE JUDGEMENT
PAPERWORK; REQUEST FOR ORDER: ENFORCEMENT OF FINDINGS AND ORDER AFTER
HEARING DATED SEPT 9, 2024 (EQUALIZING PAYMENT)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Melinda Carpenter (Wife) and Respondent Matthew Carpenter (Husband). The parties married on 10/12/2013. The parties agree their date of separation is 11/11/2019, for a marriage of 6 years and 1 month. The parties have one minor child, Jack (DOB: 2/17/2016). Both parties are currently self-represented.
- 2) No Judgment has been entered to date in this matter.
- 3) On 8/29/2024 (per the Findings and Order After Hearing filed 9/9/2024), Judge Costin held a long-cause hearing. Wife was represented by attorney Karl Siganporia and Husband was self-represented. Judge Costin made various orders to divide the parties' community estate and ordered Wife to pay Husband a net amount of \$14,118.41 as an equalizing payment, in installments of \$300 per month for a period of 48 months commencing October 2024, with the final payment to be made in September 2026. Judge Costin also stated that the Court's

jurisdiction over the issue of spousal support would terminate 60 days after the filing of the Findings and Order After Hearing. Judge Costin awarded the parties joint legal and joint physical custody of Jack. Finally, Judge Costin ordered Wife to prepare the Judgment and Notice of Entry of Judgment for the Court's review.

- 4) Now on for hearing are two motions. The first motion is Husband's Request for Order filed 2/3/2026 asking the Court to enforce the Findings and Order After Hearing filed 9/9/2024. Husband states Wife paid one installment payment to him in October 2024 and has not made additional payments since then. Husband states Wife has taken the position that Husband needs to sign various Judgment documents before further payments can be made (including the FL-130, FL-141, FL-144, and FL-170). Husband also notes that there is a mathematical inconsistency with the payment schedule (namely, 48 months x \$300 per month overshoots the amount owed of \$14,118.41, and there are 24 months between October 2024 and September 2026, not 48 months). Husband asks the Court to:

- a. Order Wife to reimburse Husband for enforcement-related expenses (\$525 Husband paid for a one-hour consultation with a family law attorney, plus costs incurred for filing, e-filing, and service of the Request for Order);
 - b. Confirm and enforce the 9/9/2024 Findings and Order After Hearing;
 - c. Determine the total arrears owed, including missed installments;
 - d. Clarify the correct payment schedule, including the total amount owed, the number of months, and the correct end date;
 - e. Order immediate payment or establish an enforcement mechanism; and
 - f. Clarify that Petitioner's payment obligation is not conditioned on Respondent's signing additional judgment processing documents.
- 5) On 3/9/2026, Wife filed a Responsive Declaration stating that she does not consent to the orders requested. Wife states she was following her attorney's direction to withhold payment until Respondent signed various Judgment documents (FL-130, FL-170, and FL-144). Wife states Husband has been "sitting" on these documents and refusing to sign them since 10/22/2024. However, Wife also states she has "paid the installments to date and am current, and will continue to pay until equalizing payment is complete." Wife states that \$5,400 has been paid as of

3/9/2026 and that the remaining balance due is \$8,718.41. Wife states that she plans to continue paying \$300 per month through August 2028 and that her last payment will be \$318.41 to satisfy the total amount owed.

6) Husband did not file a Reply Declaration.

7) The hearing on Husband's 2/3/2026 Request for Order was originally set to be heard on 3/24/2026. The Court continued the hearing on Husband's 2/3/2026 Request for Order to 4/28/2026 to join the hearing set on Wife's related Request for Order filed 3/9/2026.

8) Also on for hearing is Wife's Request for Order filed 3/9/2026 asks the Court to order Husband to sign the following forms: FL-130, FL-170, and FL-144. Wife attached to her Request for Order a Judgment reject letter issued by a Court clerk requesting these three forms.

9) On 4/15/2026, Husband filed a Responsive Declaration. Husband does not consent to Wife's requested orders. He states he has not signed the requested documents because they contain "errors and inconsistencies" and he cannot sign documents under penalty of perjury which contain errors. Husband cites the clerical errors in Judge Costin's order regarding the number and amount of installment payments. Husband states that Wife only resumed payments after he filed his Request for Order.

10) Wife did not file a Reply Declaration.

B. Findings and Order

1) The Court finds there is a mathematical error in Section B of the Findings and Order After Hearing filed 9/9/2204. The Court hereby corrects the last paragraph of Section B to read: "This payment shall be made in installments, at the rate of \$300 per month for a period of 46 months and then a final payment in the 47th month of \$318.41. Payments shall be made by the 15th of each month, beginning in October of 2024, with the final payment to be made in September 2028."

2) Based on the parties' declarations, the Court finds that Wife is currently up to date with her installment payments and no arrears are owed.

3) The Court does not find good cause to award Husband attorney's fees sanctions and his request is denied.

1 4) The Court finds good cause to waive the requirement that the parties sign and file an FL-130 and
2 FL-170.

3 5) Wife filed a Declaration Regarding Service of Final Declaration of Disclosure on 8/12/2024.
4 Husband has not filed a Declaration Regarding Service of Final Declaration of Disclosure;
5 however, Wife requested that Husband sign a waiver of Final Declaration of Disclosure. The
6 Court hereby waives the requirement that Husband serve a Final Declaration of Disclosure.

7 6) The Court will prepare a Judgment which incorporates the Findings and Order After Hearing filed
8 9/9/2024 as well as the Findings and Order After Hearing for the 4/28/2026 hearing date. The
9 parties do not need to submit any additional Judgment-related documents. The Judgment will be
10 mailed to the parties by 5/15/2026.

11 7) The Court will prepare the Findings and Order After Hearing.
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